

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olufunke Awosogba	Team: Team # 6	CCRB Case #: 200602287	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 02/05/2006 1:30 AM	Location of Incident: In front of 3430 Fulton Street (Eiffel Bar)	18 Mo. SOL 8/5/2007	Precinct: 75		
Date/Time CV Reported Wed, 02/22/2006 1:53 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/22/2006 1:53 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Sharp	16369	935731	075 PCT
2. SGT Carlton Suddler	03558	896890	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eliut Pena	29680	935485	075 PCT
2. POM Angelo Petkovits	20425	935505	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Carlton Suddler	Abuse: Sgt. Carlton Suddler authorized the stop of § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Jason Sharp	Abuse: PO Jason Sharp frisked § 87(2)(b), § 87(2)(b), and unknown individuals.	B . Unsubstantiated
C . POM Jason Sharp	Force: PO Jason Sharp used physical force against § 87(2)(b)	C . Exonerated
D . SGT Carlton Suddler	Force: Sgt. Carlton Suddler used physical force against § 87(2)(b)	D . Exonerated
E . POM Jason Sharp	Discourtesy: PO Jason Sharp spoke rudely to § 87(2)(b)	E . Unsubstantiated

Synopsis

On February 5, 2006, at approximately 1:30 PM, § 87(2)(b) his god brother § 87(2)(b) – and two unknown males were smoking inside of a mutual friend’s car in front of the Eiffel Bar located on 3430 Fulton Street in Brooklyn. A little while after the males began smoking in the car, PO Jason Sharp and Sgt. Carlton Suddler of the 75th Precinct approached the vehicle. § 87(2)(b) and the other males were asked to exit the vehicle. (Allegation A) Shortly after § 87(2)(b) exited the vehicle, the other occupants were asked to exit the vehicle. PO Sharp asked § 87(2)(b) what he was doing and § 87(2)(b) told him that they were smoking in the car because it was raining. PO Sharp then allegedly frisked § 87(2)(b) and § 87(2)(b) (Allegation B) Shortly thereafter, PO Sharp and Sgt. Suddler got into a physical struggle with § 87(2)(b) (Allegations C and D) When § 87(2)(b) was being transported to the precinct, PO Sharp allegedly told § 87(2)(b) “I hope you fucking swallow it so we don’t have to do the paperwork.” PO Sharp also allegedly spoke rudely to § 87(2)(b) at the precinct station house. (Allegation E).

§ 87(2)(g)

§ 87(2)(b) it is recommended that allegations A, C, and D be closed as exonerated and allegations B and E be closed as unsubstantiated.

Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on March 2, 2006 (enc. 4a-g). He is a § 87(2)(b) black male § 87(2)(b)

§ 87(2)(b) The incident occurred on the February 5th, 2006 at approximately 1:30 am in the vicinity of 3430 Fulton Street in Brooklyn. At the time of the incident, § 87(2)(b) was wearing a red, white, and blue button down shirt, blue jeans and red, white, and blue Timberland boots. § 87(2)(b) did not know the officers’ names while being interviewed. He described the officer, identified through investigation as PO Jason Sharp, as a white uniformed male, about 5’7”, in his late 30s, of muscular build, and completely bald. § 87(2)(b) described the officer identified through investigation as Sgt. Carlton Suddler as a white male in uniform, 6’0” tall, in his mid 30s, bald, and of slim build. A few other uniformed officers arrived at the scene later, but § 87(2)(b) did not recall the physical details of these officers.

§ 87(2)(b) and his god brother, § 87(2)(b) took a cab from § 87(2)(b)’s home to the Eiffel Bar on February 5, 2006, and had one or two beers each. After about an hour, the two men walked out of the bar to smoke a cigarette. Because it was raining, § 87(2)(b) friend of § 87(2)(b)’s father, about 6’2,” dark skinned, 250 pounds--offered § 87(2)(b) his car as shelter from the rain. § 87(2)(b) handed § 87(2)(b) his car keys. The car was parked directly outside of the club. After 6 or 7 minutes had passed, two of § 87(2)(b)’s friends (described as Guyanese/Indian) joined § 87(2)(b) and § 87(2)(b) in the car to smoke. § 87(2)(b) had not met them before that night and did not know their names. § 87(2)(b) sat in the front passenger seat and one of § 87(2)(b)’s friends sat in the driver’s seat. § 87(2)(b) and the other friend sat in the back seat of § 87(2)(b)’s white Toyota Camry. § 87(2)(b) and § 87(2)(b) shared a Newport cigarette while § 87(2)(b)’s friends also smoked. § 87(2)(b) also had a cigar in his lap. The car windows were rolled up due to the rain.

A few minutes after § 87(2)(b)’s friends entered the car, § 87(2)(b) saw a marked police vehicle pass § 87(2)(b)’s car slowly but then disappeared. About five minutes later, the same police vehicle passed by in the same direction. This time the officers parked their vehicle in front of the bar, exited their vehicle, looked towards the bar and then around the area. The officers noticed § 87(2)(b) and the others in the car and slowly approached it. PO Sharp knocked on the window. § 87(2)(b) was still smoking the cigarette. The car wasn’t running so the window didn’t roll down. § 87(2)(b) opened the door in order to cooperate with the officers. PO Sharp asked § 87(2)(b) what he was doing in the car and when § 87(2)(b) did not answer “fast enough,” PO Sharp and Sgt. Suddler asked § 87(2)(b) and the others to step out of the vehicle. § 87(2)(b) and the others complied with this request all at once. At the time, the cigar was in § 87(2)(b)’s hand. Later, he dropped in on the ground, but neither officer commented or seemed to

notice the item. PO Sharp asked, “What are you doing in there?” § 87(2)(b) answered, “It’s raining out and we were smoking.” PO Sharp did not give any warning before patting down the outer layer of § 87(2)(b)s clothing; he did not enter his pockets. § 87(2)(b) also thought he saw Sgt. Suddler frisk [pat down] the other two males, but did not know for sure.

While talking to PO Sharp, § 87(2)(b)s tooth “partial” fell out of from the upper left front side of his mouth. He caught it and put it back into his mouth. (He claimed his partial falls out regularly and he plays around with it a lot). Sgt. Suddler then grabbed the back of his neck and his nose from behind exclaiming, “He’s swallowing it.” § 87(2)(b) was brought down to the ground face first. Sgt. Suddler grabbed the front of his neck with one hand and pinched his nose with the other. Sgt. Suddler did not choke § 87(2)(b) but did prevent nasal breathing. Sgt. Suddler brought § 87(2)(b) up to the police vehicle, where PO Sharp emptied § 87(2)(b)s pockets and handcuffed him. By the time he got picked up off the ground, § 87(2)(b) noticed other officers on the scene, but could not recall their activities. § 87(2)(b)s father, § 87(2)(b), witnessed § 87(2)(b) being placed in handcuffs, but not the other events. § 87(2)(b) also learned later that § 87(2)(b)s car was towed, brought to the precinct, searched, and immediately returned.

The officer placed § 87(2)(b) in the vehicle and brought him to the 75th Precinct. PO Sharp was sitting in the passenger seat while Sgt. Suddler was driving. § 87(2)(b) became aware that the officers suspected him of swallowing marijuana at this time. During the car ride, PO Sharp exclaimed, “I hope you fucking swallow it so we don’t have to do the paperwork.” The other people in the car were not arrested nor were they issued summonses.

PO Sharp and Sgt. Suddler did not process his arrest at the precinct. The only thing left in § 87(2)(b)s pocket was a set of gold teeth, which were never vouchered and never returned to § 87(2)(b). Later, § 87(2)(b) asked PO Sharp about the teeth. PO Sharp replied “don’t fucking worry about it.” § 87(2)(b) could not recall if any other officers witnessed this interaction. All the other items recovered from § 87(2)(b)s pockets were left at the scene of his arrest and picked up by his father. § 87(2)(b) was charged § 87(2)(b). He was also charged § 87(2)(b), § 87(2)(a) 160.50

Results of Investigation

CIVILIAN STATEMENT

§ 87(2)(b) was interviewed at the CCRB on March 2, 2006 (enc. 5a-f). He is a § 87(2)(b) black male, 6’1, 150 lbs., and is currently unemployed. § 87(2)(b) and § 87(2)(b) have been friends since high school. The incident occurred on February 5, 2006, at approximately 1:30 a.m. in front of 3430 Fulton Street (Eiffel Bar). § 87(2)(b) was wearing braids/cornrows in his hair at the time of his interview, but was wearing a do-rag on the date of the incident.

According to § 87(2)(b)s statement, he and § 87(2)(b) walked to Eiffel Bar from § 87(2)(b)s home about 12 blocks away. They usually hang out at Eiffel and did not specifically make plans to meet anyone else there. They did not make any stops or purchases on the way, and arrived at Eiffel at about 12:00 a.m. § 87(2)(b) and § 87(2)(b) were in the bar for about 1 and ½ hours before deciding to go outside to smoke a cigarette. § 87(2)(b) had about 1 or 2 Corona beers, but did not remember if § 87(2)(b) drank anything. § 87(2)(b) and § 87(2)(b) went outside to the front of the bar. Two unknown males walked out at the same time and greeted § 87(2)(b). It turned out that the two males were § 87(2)(b)s friends. § 87(2)(b) had not seen or spoken to these men before this. He did not know their names and could only describe one as of them as an Indian male; he did not remember what the other male looked like. All four men wanted to smoke cigarettes, but it was raining. § 87(2)(b) gave § 87(2)(b) his car keys and offered to let everyone smoke inside his car. His gold Toyota Camry was parked directly in front of the bar. (The car is in fairly good condition).

One of § 87(2)(b)'s friends sat in the driver's seat and § 87(2)(b) sat in the front passenger seat. § 87(2)(b) and the other friend sat in the back. § 87(2)(b) and § 87(2)(b) smoked from a pack of Newports that § 87(2)(b) had bought earlier that day, while the other men smoked their own cigarettes. They did not share cigarettes and each smoked their own. § 87(2)(b) also had a "Backwood" [cigar], which he did not have a chance to smoke. He was holding it in his hand and saving it for later. According to § 87(2)(b), a Backwood consists of tobacco "rolled up in a brown looking leaf." § 87(2)(b) and the other men only smoked cigarettes and "there was no weed involved." The windows were not rolled down. About 10 minutes later, § 87(2)(b) noticed a marked RMP drive past at least two times before stopping in front of the bar. The RMP double-parked next to § 87(2)(b)'s vehicle. An officer (identified through the investigation as PO Sharp) stepped out of the front passenger seat, walked to the front of the bar and peered inside. PO Sharp was a short (5'5-5'6) white male, in his 30s, wearing a uniform. No one—including § 87(2)(b)—was standing in the vicinity of the bar. As PO Sharp walked back towards his RMP, he noticed all of the men sitting inside § 87(2)(b)'s vehicle, and knocked on § 87(2)(b)'s window. § 87(2)(b) opened the car door. PO Sharp immediately told § 87(2)(b) to step out. § 87(2)(b) put his hands up and PO Sharp began patting down his clothing and grabbed his front pants pockets. § 87(2)(b) did not see PO Sharp reach into § 87(2)(b)'s pockets and also did not hear what was going on because the door was closed. He did not know what had happened to the Backwood. § 87(2)(b) was told to stand and wait by the parking meter behind § 87(2)(b)'s vehicle.

PO2 (identified through the investigation as Sgt. Suddler) stepped out of the RMP's driver's seat and ordered § 87(2)(b) and the others to step out as well. Sgt. Suddler was a white male, about 6', in uniform. Sgt. Suddler patted down § 87(2)(b)'s friends, while PO Sharp patted down § 87(2)(b). § 87(2)(b) was standing by the back door, a couple of feet away from § 87(2)(b). He did not ask what was going on or speak to any of the officers. Two additional officers (identified through the investigation as PO Petkovits and PO Pena) arrived in the meantime. They parked their vehicle behind the first RMP, stepped out into the street, and did not speak to anyone. § 87(2)(b) could not describe PO Petkovits and PO Pena in detail, other than the fact that they were white males in their 30s, in uniform.

After frisking § 87(2)(b), PO Sharp suddenly "walked at a fast pace" towards § 87(2)(b) who was still standing by the parking meter. § 87(2)(b) "backed up" into the street, prompting Sgt. Suddler, PO Petkovits, and PO Pena to "jump" on him. § 87(2)(b) did not see anything or know what caused the officers to do this. Sgt. Suddler grabbed § 87(2)(b) by the nose and throat, while PO Petkovits and PO Pena attempted to "bring him down" by the arms and back. They were all standing on the street, in between the two marked RMP's. § 87(2)(b) could not see clearly, but he did remember hearing § 87(2)(b) or the officers say anything during the encounter. Sgt. Suddler, PO Petkovits, and PO Pena brought § 87(2)(b) down to the ground and placed him in handcuffs. § 87(2)(b) was placed in the back of PO Sharp and Sgt. Suddler's vehicle. Before placing him inside the vehicle, one of the officers retrieved § 87(2)(b)'s wallet, keys, phone, and hat, and gave them to his father. § 87(2)(b)'s father works doing maintenance for the bar and came out after § 87(2)(b) had already been placed in handcuffs).

PO Sharp or Sgt. Suddler informed § 87(2)(b) that they were "confiscating" his vehicle and "drove off" with it back to the precinct. The officers never explained the reason for the stop/frisks. When asked, § 87(2)(b) said that no one at the scene learned the reason for § 87(2)(b)'s arrest because he was "arrested for no reason." No one argued with or asked the officers the reason for the stop/frisk. Besides the fact that § 87(2)(b) was arrested, § 87(2)(b) did not feel that there were any problems or issues with the officers. He did not hear the officers make any comments, raise their voice, or curse at anyone at the scene.

§ 87(2)(b) did not speak to § 87(2)(b) about the incident once he was released, nor did he learn of the circumstances leading up to § 87(2)(b)'s arrest.

§ 87(2)(b) has a fake tooth [partial] on the front upper left side of his mouth. § 87(2)(b) went to the dentist with § 87(2)(b) to get the partial in July 2005. He does not know if § 87(2)(b) has had any problems with the partial. § 87(2)(b) has a tendency to "play" with the partial, but as far as § 87(2)(b) knows the partial fits and does not have a tendency to fall out. § 87(2)(b) was "not sure" if he saw § 87(2)(b).

§ 87(2)(b)'s partial fall out of his mouth on the date of the incident. § 87(2)(b) was wearing gold teeth both on the upper and lower portions of his mouth. He later told § 87(2)(b) that he removed the upper portion (it was given to his father at the scene along with his other belongings), but that officers had lost the lower portion.

§ 87(2)(b) said that no one was in the vehicle was under the influence of any substances, intoxicated, or smoking marijuana, but assumed that the officers thought they were smoking marijuana because of the Backwood. He did not remember if § 87(2)(b) stepped out of the car with the Backwood and did not know what happened to it or how it was brought to the officers' attention. § 87(2)(b) and the other two males were not issued summonses. § 87(2)(b) has not had issues with officers or been arrested as result of marijuana possession/sale.

OFFICER STATEMENTS

Sgt. Carlton Suddler of the 75th Precinct was interviewed at the CCRB on May 12, 2006 (enc. 7a-c). He is a § 87(2)(b) black male, § 87(2)(b). On February 5, 2006, Sgt. Suddler was assigned to the Conditions Supervisor post with his operator, PO Jason Sharp. (PO Petkovits and PO Pena were also assigned to their team). Sgt. Suddler worked in uniform from 10:00 p.m. until 6:57 a.m. the next morning. He was originally assigned to a marked RMP with plate number 4155, and subsequently assigned to a marked RMP with plate number 2593 at 1:00 a.m. Sgt. Suddler did not generate any memo book entries regarding this incident.

Sgt. Suddler stated that PO Sharp was operating the vehicle on the date in question. They were on routine patrol, driving along Fulton Street, at about 5 mph, when they came upon four males sitting inside a parked vehicle in front of Eiffel Bar (3430 Fulton Street). The vehicle was parked on the right hand-side of a two-way street, closest to Sgt. Suddler's front passenger seat. The vehicle was not running. (There are many bars and restaurants in the area and the precinct regularly received complaints regarding robberies and fights). His attention was first drawn to the vehicle, as he and PO Sharp drove past it, because the vehicle looked cloudy inside. According to Sgt. Suddler, the windows were rolled up and "it was cloudy enough that I knew some kind of [criminal] activity was going on." He observed a "puff of white smoke," permeating the entire vehicle, but could not tell where the smoke was coming from. PO Sharp drove a couple of feet before Sgt. Suddler directed him to stop and both officers exited their vehicle. Sgt. Suddler approached the front passenger seat and knocked on the window, prompting the passenger, § 87(2)(b) to roll it down. A puff of smoke blew out from the vehicle, smelling like marijuana. (Sgt. Suddler viewed Polaroid photos of § 87(2)(b) and identified him as the passenger in question). Sgt. Suddler asked § 87(2)(b) to exit his vehicle and he complied. He asked § 87(2)(b) "Where's the drugs at?" but § 87(2)(b) said that he was not using any drugs. Sgt. Suddler and § 87(2)(b) were standing at the back passenger side of the vehicle, while PO Sharp asked the other three passenger to exit and stand at the back of the vehicle. They were all black males in their early 20s.

Sgt. Suddler did not initially observe any contraband or drugs in § 87(2)(b)'s possession, but could tell that he was "out of it." § 87(2)(b)'s eyes were red and he "was not really responding." He seemed either high [on drugs] or intoxicated. Sgt. Suddler was "looking at him up and down," and noticed a marijuana cigarette sticking out of the front zipper of § 87(2)(b)'s pants. The cigarette was thin and covered in brown wrapping, similar to a cigar. Sgt. Suddler asked a second time, "Where's the marijuana at?" but § 87(2)(b) denied having any on him. While all of this was going on, Sgt. Suddler tried to gain PO Sharp's attention towards the cigarette in § 87(2)(b)'s pants zipper. Sgt. Suddler made eye contact with PO Sharp, and motioned his head and eyes down towards § 87(2)(b)'s zipper. At that time, § 87(2)(b) grabbed the marijuana out of his zipper. Sgt. Suddler went to grab § 87(2)(b)'s hand—and might have briefly grabbed his wrist—but § 87(2)(b) immediately ran off. Sgt. Suddler stated, "I really don't know what he did, but when he ran, he had put something towards his mouth." He did not know if § 87(2)(b) used one or both hands because it was dark. § 87(2)(b) was a "couple of feet" away from Sgt. Suddler when he saw him put something towards his mouth. From the time the stop was initiated, to the time § 87(2)(b) ran, approximately 5 minutes passed.

§ 87(2)(b) ran into the middle of the street—approximately 6 steps—before Sgt. Suddler caught up to him. Sgt. Suddler grabbed § 87(2)(b) by the arm and shoulders, and placed him on the ground on his

stomach. § 87(2)(b) lay on his hands and initially refused to comply with Sgt. Suddler's repeated requests to "give me your hands." PO Sharp ran towards them, giving the other three males an opportunity to run away. § 87(2)(b) eventually allowed PO Sharp and Sgt. Suddler to place him in handcuffs; they each grabbed one arm and placed it behind his back. Sgt. Suddler did not see the marijuana in § 87(2)(b)'s hands, so he asked him to open his mouth. § 87(2)(b) did not say anything and simply kept his mouth shut. This only confirmed suspicions that he might have something [marijuana] in his mouth. Sgt. Suddler grabbed § 87(2)(b)'s jaw (with one hand) and opened his mouth, but there was nothing inside. He did not recall if PO Sharp ever placed his hands on § 87(2)(b)'s mouth or facial area. Sgt. Suddler also said he might have pinched § 87(2)(b)'s nose, so that he would have no choice but to open his mouth. In circumstances where an individual is suspected of swallowing contraband, Sgt. Suddler was taught in training to squeeze a defendant's jaw (by the cheeks), in an effort to force the contraband out of the defendant's mouth. He never grabbed or reached for § 87(2)(b)'s neck or throat, and § 87(2)(b) never indicated that he was having trouble breathing.

Once handcuffed, PO Sharp searched § 87(2)(b) before placing him in the RMP for transport. The patrol supervisor (Sgt. Staudinger) responded, but did not have any involvement in the incident. Sgt. Suddler did not know what items were recovered from § 87(2)(b) just that PO Sharp eventually left those items with a man, who identified himself as § 87(2)(b)'s father. § 87(2)(b) was never frisked or searched before being handcuffed. Sgt. Suddler called PO Petkovits and PO Pena to the scene because people from the club were beginning to gather. PO Petkovits and PO Pena arrived at the scene for prisoner transport. However, Sgt. Suddler could not recall whether he and PO Sharp, or PO Petkovits and PO Pena transported § 87(2)(b) to the precinct. Sgt. Suddler did not speak to any other civilians at the scene—although PO Sharp did speak with § 87(2)(b)'s father. No marijuana was ever recovered from § 87(2)(b). It was unclear who owned the vehicle, so it was towed from the scene and taken to the precinct. PO Sharp might have notified the vehicle's owner later on at the precinct, but Sgt. Suddler never spoke to or learned who owned it. Neither Sgt. Suddler nor PO Sharp looked inside or searched the vehicle at the scene of the incident.

§ 87(2)(b) was "still out of it" even after being handcuffed. He had a "blank look" on his face and was non-verbal—as if detached from reality. Sgt. Suddler denied stating or ever hearing PO Sharp make the statement, "I hope you fucking swallow it so we don't have to do paperwork." § 87(2)(b) never mentioned anything about any missing items—specifically gold teeth—in his conversations with Sgt. Suddler. And Sgt. Suddler did not notice if § 87(2)(b) had fake or gold teeth. He never saw anything fall out of § 87(2)(b)'s mouth in their conversations.

To Sgt. Suddler's knowledge, the other three individuals were not frisked. He did not have time to assess whether the other individuals had marijuana in their possession, and PO Sharp never made any indication of such. Sgt. Suddler did not know if gold teeth were among the possessions given to § 87(2)(b)'s father at the scene.

PO Jason Sharp of the 75th Precinct was interviewed at the CCRB on June 12, 2007 (enc. 12a-c). PO Sharp is a § 87(2)(b) white male, § 87(2)(b). On February 5, 2006, PO Sharp was assigned to the Conditions post with Sgt. Carlton Suddler. PO Sharp worked in uniform from 10:00 p.m. until 6:35 a.m. the next morning. He was assigned to a marked RMP (PO Sharp did not recall the RMP number). PO Sharp did not bring his memo book with the entries regarding this incident, but stated that he did have entries regarding this incident. In the UF-61, in the online booking system arrest worksheet, and in the arrest report, PO Sharp stated that at the time and place of the occurrence, he observed § 87(2)(b) smoking a marijuana cigarette with 3 others in a vehicle. Upon further investigation, § 87(2)(b) tried to conceal the cigarette in the zipper of his pants. When PO Sharp tried to retrieve it, § 87(2)(b) fled placing marijuana in his mouth. Upon apprehension, § 87(2)(b) swallowed the marijuana. In the supporting deposition, PO Sharp states that he observed § 87(2)(b) bring a burning cigarette of marijuana in his hand to his mouth. PO Sharp states that the basis of his conclusion that the substance was marijuana was that he has had professional training as a police officer in the identification of marijuana; have previously made arrests for criminal possession of marijuana; have previously seized marijuana, which was determined to be such by the police department laboratory, and the substance/drug in this case possesses the same physical characteristics as the previously chemically identified substance/drug; and by

professional training and experience as a police officer, am familiar with the common methods of packaging marijuana and the packaging described above is a commonly used method of packaging such substance/drug. PO Sharp stated that § 87(2)(b) resisted arrest by struggling with him and running away.

PO Sharp and Sgt. Suddler were conducting bar inspections when they arrived at 3430 Fulton Street (the Eiffel Bar) around 2:00 a.m. on February 5, 2006. There were a few people smoking cigarettes outside of the bar, but there was a strong smell of marijuana coming from a parked car in front of the bar. He observed § 87(2)(b) (described as 5'10" to 6'0", medium skinned male with little facial hair, short hair) and three other males, who PO Sharp could not describe, passing around what seemed to be a "lit [marijuana] cigarette." PO Sharp and Sgt. Suddler approached the car on foot, and knocked on the window. When the window was rolled down, a "big puff of smoke" came out of the car and PO Sharp smelled a "huge aroma of marijuana." PO Sharp and Sgt. Suddler asked the men to exit the car. § 87(2)(b) was quiet and appeared nervous. PO Sharp stated that Sgt. Suddler noticed half of a marijuana cigarette sticking out of the front zipper of § 87(2)(b)'s pants, and said "Look at the marijuana. It's right there." PO Sharp did not initially see contraband on § 87(2)(b) until Sgt. Suddler pointed it out to him. PO Sharp stated that at this time, one of the other males was "getting a little loud" with the officers. PO Sharp stated that he figured that this male was trying to take attention away from § 87(2)(b). PO Sharp also stated that the males seemed like that had drinks because they "had a little bit [odor] of drinks on them." PO Sharp stated that his intention was not to arrest the individual when they were asked to step outside of the vehicle unless marijuana was found on any of their persons. PO Sharp denied that § 87(2)(b) or any of the other three males were frisked.

When Sgt. Suddler reached for the marijuana, § 87(2)(b) smacked Sgt. Suddler's hand and "took off running." Sgt. Suddler chased after § 87(2)(b). PO Sharp left the three males and chased after § 87(2)(b) also. The three males fled in the opposite direction; no one chased after them. § 87(2)(b) was able to make it across the street—20 feet away—before Sgt. Suddler and PO Sharp caught up to him and "tackled" him down to the ground. As PO Sharp and Sgt. Suddler tackled § 87(2)(b) to the ground, PO Sharp saw § 87(2)(b) put marijuana [cigarette] in his mouth. PO Sharp squeezed § 87(2)(b)'s jaw (by his cheeks) to get the contraband out of § 87(2)(b)'s mouth and told § 87(2)(b) to spit it out, but § 87(2)(b) swallowed it. PO Sharp stated that he saw a lump in § 87(2)(b)'s throat as he ingested the contraband. PO Sharp denied grabbing § 87(2)(b) by his neck/throat or pinching his nose. PO Sharp also denied that Sgt. Suddler committed these acts. PO Sharp stated that Sgt. Suddler did not see § 87(2)(b) swallow the marijuana but that he told Sgt. Suddler that § 87(2)(b) swallowed it." PO Sharp stated that Sgt. Suddler only tried to grab § 87(2)(b)'s hands to get them behind his back. § 87(2)(b) was uncooperative with the effect of the arrest because he ran and flailed his arms as he was on the ground. PO Sharp and Sgt. Suddler managed to get § 87(2)(b)'s hands behind his back and handcuffed him.

During this time, a crowd gathered, but no one tried to interfere with what was going on with § 87(2)(b) and the officers. § 87(2)(b)'s father approached the officers, and because PO Sharp did not know who § 87(2)(b)'s father was at the time, he told the father to "stay back." § 87(2)(b)'s father told the officers that § 87(2)(b) was his son and § 87(2)(b) confirmed that the man was his father. § 87(2)(b) was frisked and searched after he was placed in handcuffs, and PO Sharp gave all of § 87(2)(b)'s belongings to § 87(2)(b)'s father. PO Sharp stated that § 87(2)(b) had nothing on his person when they arrived at the precinct stationhouse. At some point after § 87(2)(b)'s arrest, additional officers arrived on the scene, but PO Sharp did not recall if additional units were called to the scene. PO Sharp stated that he saw a bump on § 87(2)(b)'s forehead and asked § 87(2)(b) if he wanted medical attention. § 87(2)(b) refused medical treatment. PO Sharp and Sgt. Suddler transported § 87(2)(b) to the precinct station house in their RMP. PO Sharp denied telling § 87(2)(b) "I hope you fucking swallow it so that we don't have to do any paperwork." PO Sharp stated that the only reference he made to § 87(2)(b) about the marijuana was "you just got hit with a felony." He said this to § 87(2)(b) before placing him inside of his RMP.

The owner of the car was not found. PO Sharp stated that he did not search the car and that he left the car at the location since it was legally parked. PO Sharp did not know if the car was searched. PO Sharp stated that he never saw gold teeth on § 87(2)(b)'s person nor did § 87(2)(b) or his father make any

comments to him about § 87(2)(b) having or missing gold teeth. PO Sharp stated that according to IAB, § 87(2)(b) made an allegation that PO Sharp put his gold teeth on the desk. PO Sharp told IAB that he took § 87(2)(b) to the desk at the precinct station house and § 87(2)(b) had nothing on his person at the precinct because he gave all of his belongings to his father at the location of the incident. No marijuana was ever recovered from § 87(2)(b). § 87(2)(b) was charged § 87(2)(a) 160.50

POLICE DOCUMENTS

The *sprint print-out* (enc. 13a-c) showed that at 2:06 a.m., the 75th Precinct Patrol Sergeant radioed an arrest at 3430 Fulton Street.

The 75th Precinct *roll call* (enc. 18a-g) from February 5, 2006 confirmed that PO Sharp worked with Sgt. Suddler on Precinct Conditions. Sgt. Suddler was the Precinct Conditions supervisor. PO Pena, PO Petkovits, and PO Santana were also assigned to Precinct Conditions.

The *arrest report* (enc. 10a-b) for § 87(2)(b) indicates that nothing was vouchered pursuant to § 87(2)(b)'s arrest.

According to *stop and frisk log* (enc. 20a), there were no reports for § 87(2)(b)

PO Pena, PO Petkovits, and PO Santana had no *memo book* entries regarding this incident.

CIVILIANS' CRIMINAL CONVICTION HISTORY (enc. 21a-j)

§ 87(2)(a) 160.50

CIVILIAN'S CCRB HISTORY (enc. 2a-b)

This is § 87(2)(b)'s first CCRB complaint.

OFFICERS' CCRB HISTORY (enc. 1a-b)

PO Sharp has no CCRB complaints that have resulted in disciplinary action. Sgt. Suddler has not been the subject officer in any CCRB complaint prior to this incident.

Conclusions and Recommendations

OFFICER IDENTIFICATION

PO Sharp is on all of the paperwork surrounding § 87(2)(b)'s arrest as his arresting officer, and PO Sharp confirmed his involvement in the incident. § 87(2)(g)

§ 87(2)(b) described PO Sharp's partner as a white male. However, the roll call showed that PO Sharp was partnered with Sgt. Suddler—a light-skinned black male. § 87(2)(g)

DISPUTED & UNDISPUTED FACTS

Sgt. Suddler and PO Sharp stopped § 87(2)(b) and the 3 other males that were smoking inside of a parked car outside of a bar located at 3430 Fulton Street in Brooklyn. All of the males were asked to exit

the vehicle and they complied.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)

It is certain, however, that Sgt. Suddler pinched § 87(2)(b)'s nose then handcuffed him. Additional officers arrived at the location, and § 87(2)(b) was transported to the 75th Precinct Station House. PO Sharp rode with § 87(2)(b) to the precinct station house, § 87(2)(g)

ASSESSMENT OF EVIDENCE

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that § 87(2)(b) was “jumped” by Sgt. Suddler and two additional officers (PO Pena and PO Petkovits). Sgt. Suddler admitted that he used physical force against § 87(2)(b) because he suspected that § 87(2)(b) was trying to confiscate marijuana. When Sgt. Suddler brought § 87(2)(b) down to the ground, he pinched § 87(2)(b)'s nose and grabbed § 87(2)(b)'s jaw to prevent him from discarding the marijuana. Sgt. Suddler stated that pinching a perpetrator's nose and squeezing the jaw in attempt to force the contraband out of the defendant's mouth is a tactic that he learned in the police academy. § 87(2)(g)

§ 87(2)(b) stated that he pinch his nasal passage was not blocked in anyway and that he did not choke. § 87(2)(g)

§ 87(2)(b) stated that he did not notice that there were additional units on the scene until he was brought on to his feet, and did not recall their involvement in the incident. Both § 87(2)(b) and § 87(2)(b) claimed that PO Sharp frisked their person. § 87(2)(b) did not state that PO Sharp frisked § 87(2)(b) and PO Sharp denied that he frisked § 87(2)(b) prior to arresting him. PO Sharp stated that he had no interaction with any of the other three males because § 87(2)(b) ran from the officers shortly after § 87(2)(b) was asked to step out of the vehicle and the other males ran in the opposite direction. Despite PO Sharp's denial and the fact that there is no stop and frisk report generated on § 87(2)(b) nor § 87(2)(b) the likelihood that the frisked occurred cannot be overlooked since PO Sharp and Sgt. Suddler were the only two officers on the scene with the four males that were engaged in some activity inside of a parked car. § 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

According to the civilians and Sgt. Suddler, the vehicle that § 87(2)(b) and § 87(2)(b) were occupants was seized. § 87(2)(g)

Allegation A: Sgt. Carlton Suddler authorized the stop of § 87(2)(b) and § 87(2)(b)

Allegation C: PO Jason Sharp used physical force against § 87(2)(b)

Allegation D: Sgt. Carlton Suddler used physical force against § 87(2)(b)

§ 87(2)(g)

it is recommended that allegations A, B, and D be closed as **exonerated**.

Allegation B: PO Jason Sharp frisked § 87(2)(b), § 87(2)(b), and unknown individuals.

Allegation E: PO Jason Sharp spoke rudely to § 87(2)(b)

§ 87(2)(g)

it is

recommended that allegations B and E be closed as **unsubstantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: